William collapsed onto the arrow and died on the spot. Rather than sticking around and explaining what had happened, Walter (according to the English historian William of Malmesbury) “leapt hastily on his horse, and with good help from his spurs got clean away. Nor indeed was there any pursuit.” Instead, the rest of the hunting party, which included William II’s younger brother Henry, went back to London and crowned Henry king of England. The date was August 5, 1100.[1]

In fact, Henry wasn’t William’s heir. The English throne should have gone to Henry’s older brother Robert, Duke of Normandy, but he was still on his way back from the First Crusade. Before he could claim his crown, Henry invaded Normandy.

The two brothers met in battle near the Norman village Tinchebray; the Duke of Normandy’s army was defeated, and Robert was captured and imprisoned for the rest of his very long life. He died in his eighties, still under guard. As for Henry I, he took the title of Normandy for himself, becoming (like his father the Conqueror) both king of England and Duke of Normandy.

His reign, which had begun through force and usurpation, now took a turn towards law. As one of his very first acts, he issued a new declaration: the Charter of Liberties. The first article promised that the “holy church of God” would remain free from royal control, its lands from royal confiscation. But the remaining thirteen articles were all directed towards his people—particularly towards the barons of England.

The barons: the newborn aristocracy of England. William the Conqueror had rewarded his Norman knights by dividing the newly conquered land up into parcels and handing it out. The Anglo-Saxon nobles—the *thegns*, or “thanes”—had once been second only to the royal family in power and influence. The wars of the Conquest had already thinned their ranks. Now, those who had survived found themselves deprived of their lands, left with only tiny private holdings of their own.[2]

Unlike the thanes, the Norman barons did not consider themselves landowners, only land*holders*. William the Conqueror brought into England a new kind of kingship. As monarch, he claimed to own the entire kingdom: all English land, all Norman land, was the possession of the king. The barons were his “tenants in chief,” and in return for their new estates, they owed the king a certain number of armed men for his use: the *servitium debitum*.[3]

This system was rooted in tenth-century Francia, where chaos and lawlessness had led the poor to serve their wealthier neighbors in exchange for protection. It became known as feudalism: an order in which service and payments (both money and crops) were exchanged for the right to live on, farm, hold a particular piece of land. In England, the feudal lords and their